

****Police Report****

Texas Andreas Petersen A/S recommended for fine

Date: 06-10-2023

****Decision****

Private companies

****Police Report****

****Complaint****

****Basis for Processing****

Cookies / processing of personal data about website visitors

The Data Protection Authority reports Texas Andreas Petersen A/S to the police for having collected and disclosed personal data about website visitors without legal basis and recommends a fine of no less than 200,000 DKK.

The Data Protection Authority has reported the company Texas Andreas Petersen A/S for having collected and disclosed personal data about website visitors on www.texas.dk without a legal basis. The Data Protection Authority became aware of the company collecting personal data about website visitors in connection with a complaint.

The Data Protection Authority could, through a review of the website, ascertain that a number of cookies were used to collect and disclose information about the visitors to Google and Meta.

Normally, when the Data Protection Authority recommends a fine, a specific amount is proposed based on the nature of the case and the organization's revenue.

The Data Protection Authority has reviewed the company's most recently published annual report. However, the company's net revenue for the most recent financial year is not stated in the annual report, and therefore the recommendation in this case is for a fine of at least 200,000 DKK.

****Why a police report?****

The Data Protection Authority always conducts a specific assessment of the severity of the case pursuant to Article 83, paragraph 2 of the General Data Protection Regulation when evaluating which sanction, in the Authority's opinion, is appropriate.

In assessing that a fine should be imposed, the Data Protection Authority has, among other things, emphasized that this concerns the processing of personal data without a legal basis for the processing of personal data about potentially a very large number of registered individuals who have visited the website. The Data Protection Authority has also emphasized that the Authority has since February 2020 addressed and provided guidance on how the data protection rules should be understood in the context of processing personal data about website visitors.

****Want to know more?****

Read more about the processing of personal data about website visitors.